

Corus HR SaaS Terms and Conditions

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Corus HR SaaS Terms and Conditions

BACKGROUND

- (A) The Supplier has developed a Human Resources (HR) software application and platform which it makes available to subscribers via the internet on a pay-per-use basis for the purpose of end-to-end HR management that offers integrated recruitment, onboarding, performance evaluation, payroll, and employee engagement functionalities, augmented by advanced analytics (Corus HR). The Customer wishes to use Corus HR in its business operations.
- (B) The Supplier has agreed to provide and the Customer has agreed to subscribe and pay for Corus HR subject to these Terms and Conditions.

Agreed terms

1. Interpretation

- 1.1 The definitions and rules of interpretation in this clause apply in these Terms and Conditions.

Authorised Users: those employees, agents and independent contractors of the Customer who are authorised by the Customer to use the Services and the Documentation, as further described in clause 2.2(d).

Availability (%): $(\text{Agreed Available Time in Minutes} - \text{Downtime in Minutes}) * 100 / \text{Agreed Available Time in Minutes}$

Business Day: a day other than a Saturday, Sunday or public holiday in United Arab Emirates.

Change of Control: the beneficial ownership of more than 50% of the issued share capital of a company or the legal power to direct or cause the direction of the general management of the company, and **controls**, **controlled** and the expression **change of control** shall be interpreted accordingly.

Confidential Information: information that is proprietary or confidential and is either clearly labelled as such or identified as Confidential Information in clause 11.1.

Customer Data: the data inputted by the Customer, Authorised Users, or the Supplier on the Customer's behalf for the purpose of using the Services or facilitating the Customer's use of the Services.

Documentation: the document made available to the Customer by the Supplier online via <https://rheincs.com/contracts/CorusHR-SAAS-Contract-MEA.pdf> or such other web address notified by the Supplier to the Customer from time to time which sets out a description of the Services and the user instructions for the Services.

Downtime Minutes: Within the agreed available period, any period when the Customer is unable to access any of the Services.

Effective Date: the date of the Order Form.

Heightened Cybersecurity Requirements: any laws, regulations, codes, guidance (from regulatory and advisory bodies. Whether mandatory or not), international and national standards, industry schemes and sanctions, which are applicable to either the Customer or an Authorised User (but not the Supplier) relating to security of network and information systems and security breach and incident reporting requirements, which may include the cybersecurity Directive ((EU) 2016/1148) and the Commission Implementing Regulation ((EU) 2018/151),, all as amended or updated from time to time.

Initial Subscription Term: 3 years from the date of the Order Form.

Maximum Available Time: the total accumulated minutes during a calendar month that the Services are deployed.

Normal Business Hours: 8.00 am to 6.00 pm local Gulf Standard Time, each Business Day.

Order Form: the order form completed and signed and dated by the Customer and the Supplier relating to the order that is subject to these Terms and Conditions.

Renewal Period: the period described in clause 14.1.

Service Credit: a service credit provided by the Supplier to the Customer if the Customer is detrimentally impacted by Availability being lower than 99% with the credit being equal 10% of the Subscription Fees paid for the month for which each full percentage point Availability falls below 99%, but not to exceed 50% of the Subscription Fees payable for that month.

Services: the subscription services provided by the Supplier to the Customer under these Terms and Conditions via <https://rheincs.com/contracts/CorusHR-SAAS-Contract-MEA.pdf> or any other website notified to the Customer by the Supplier from time to time, as more particularly described in the Documentation.

Software: the online software application Corus HR provided by the Supplier as part of the Services.

Subscription Fees: the subscription fees payable by the Customer to the Supplier for the User Subscriptions, as set out in Paragraph 1 of Schedule 1.

Subscription Term: has the meaning given in clause 14.1 (being the Initial Subscription Term together with any subsequent Renewal Periods).

Support Services Policy: the Supplier's policy for providing support in relation to the Services as set out in Schedule 2 or as may be notified to the Customer from time to time pursuant to these Terms and Conditions.

User Subscriptions: the user subscriptions comprising of per person per month payable annually in advance are purchased by the Customer pursuant to clause 9.1

which entitle Authorised Users to access and use the Services and the Documentation in accordance with these Terms and Conditions.

Virus: anything or device (including any software, code, file or programme) which may: prevent, impair or otherwise adversely affect the operation of any computer software, hardware or network, any telecommunications service, equipment or network or any other service or device; prevent, impair or otherwise adversely affect access to or the operation of any programme or data, including the reliability of any programme or data (whether by re-arranging, altering or erasing the programme or data in whole or part or otherwise); or adversely affect the user experience, including worms, trojan horses, viruses and other similar things or devices.

Vulnerability: a weakness in the computational logic (for example, code) found in software and hardware components that when exploited, results in a negative impact to the confidentiality, integrity, or availability, and the term **Vulnerabilities** shall be interpreted accordingly.

- 1.2 Clause, schedule and paragraph headings shall not affect the interpretation of these Terms and Conditions.
- 1.3 A person includes an individual, corporate or unincorporated body (whether or not having separate legal personality) and that person's legal and personal representatives, successors or permitted assigns.
- 1.4 A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.
- 1.5 Unless the context otherwise requires, words in the singular shall include the plural and, in the plural, shall include the singular.
- 1.6 Unless the context otherwise requires, a reference to one gender shall include a reference to the other genders.
- 1.7 A reference to a statute or statutory provision is a reference to it as it is in force as at the date of these Terms and Conditions.
- 1.8 A reference to a statute or statutory provision shall include all subordinate legislation made as at the date of these Terms and Conditions under that statute or statutory provision.
- 1.9 References to clauses and schedules are to the clauses and schedules of these Terms and Conditions; references to paragraphs are to paragraphs of the relevant schedule to these Terms and Conditions.

2. User subscriptions

- 2.1 Subject to the Customer purchasing the User Subscriptions in accordance with clause 3.3 and clause 9.1, the restrictions set out in this clause 2 and the other terms and

conditions of these Terms and Conditions, the Supplier hereby grants to the Customer a non-exclusive, non-transferable right and licence, without the right to grant sublicences, to permit the Authorised Users to use the Services and the Documentation during the Subscription Term solely for the Customer's internal business operations.

2.2 In relation to the Authorised Users, the Customer undertakes that:

- (a) the maximum number of Authorised named Users that it authorises to access and use the Services and the Documentation shall not exceed the number of User Subscriptions it has purchased from time to time.
- (b) it will not allow or suffer any User Subscription to be used by more than one individual Authorised User unless it has been reassigned in its entirety to another individual Authorised User, in which case the prior Authorised User shall no longer have any right to access or use the Services and/or Documentation.
- (c) each Authorised User shall keep a secure password for their use of the Services and Documentation, that such password shall be changed from time to time to ensure its security and that each Authorised User shall keep their password confidential.
- (d) it shall maintain a written, up to date list of current Authorised Users and provide such list to the Supplier within 5 Business Days of the Supplier's written request at any time or times.
- (e) it shall permit the Supplier or the Supplier's designated auditor to audit the Services in order to establish the name and password of each Authorised User and the Customer's data processing facilities to audit compliance with these Terms and Conditions.
- (f) if any of the audits referred to in clause 2.2(e) reveal that any password has been provided to any individual who is not an Authorised User, then without prejudice to the Supplier's other rights, the Customer shall promptly disable such passwords and the Supplier shall not issue any new passwords to any such individual; and
- (g) if any of the audits referred to in clause 2.2(e) reveal that the Customer has underpaid Subscription Fees to the Supplier, then without prejudice to the Supplier's other rights, the Customer shall pay to the Supplier an amount equal to such underpayment as calculated in accordance with the prices set out in Paragraph 1 of Schedule 1 within 30 Business Days of the date of the relevant audit.

2.3 The Customer shall not access, store, distribute or transmit any Viruses, or any material during its use of the Services that:

- (a) is unlawful, harmful, threatening, defamatory, obscene, infringing, harassing or racially or ethnically offensive.
- (b) facilitates illegal activity.

- (c) depicts sexually explicit images.
- (d) promotes unlawful violence.
- (e) is discriminatory based on race, gender, colour, religious belief, sexual orientation, disability; or
- (f) is otherwise illegal or causes damage or injury to any person or property;

and the Supplier reserves the right, without liability or prejudice to its other rights to the Customer, to disable the Customer's access to any material that breaches the provisions of this clause.

2.4 The Customer shall not:

- (a) except as may be allowed by any applicable law which is incapable of exclusion by agreement between the parties and except to the extent expressly permitted under these Terms and Conditions:
 - (i) attempt to copy, modify, duplicate, create derivative works from, frame, mirror, republish, download, display, transmit, or distribute all or any portion of the Software and/or Documentation (as applicable) in any form or media or by any means; or
 - (ii) attempt to de-compile, reverse compile, disassemble, reverse engineer or otherwise reduce to human-perceivable form all or any part of the Software; or
- (b) access all or any part of the Services and Documentation in order to build a product or service which competes with the Services and/or the Documentation; or
- (c) use the Services and/or Documentation to provide services to third parties; or
- (d) subject to clause 22.1, license, sell, rent, lease, transfer, assign, distribute, display, disclose, or otherwise commercially exploit, or otherwise make the Services and/or Documentation available to any third party except the Authorised Users, or
- (e) attempt to obtain, or assist third parties in obtaining, access to the Services and/or Documentation, other than as provided under this clause 2; or
- (f) introduce or permit the introduction of, any Virus or Vulnerability into the Supplier's network and information systems.

2.5 The Customer shall use all reasonable endeavours to prevent any unauthorised access to, or use of, the Services and/or the Documentation and, in the event of any such unauthorised access or use, promptly notify the Supplier.

2.6 The rights provided under this clause 2 are granted to the Customer only, and shall not be considered granted to any subsidiary or holding company of the Customer.

3. Additional user subscriptions

- 3.1 Subject to clause 3.2 and clause 3.3, the Customer may, from time to time during any Subscription Term, purchase additional User Subscriptions in excess of the number set out in Paragraph 1 of Schedule 1 and the Supplier shall grant access to the Services and the Documentation to such additional Authorised Users in accordance with the provisions of these Terms and Conditions.
- 3.2 If the Customer wishes to purchase additional User Subscriptions, the Customer shall notify the Supplier in writing using the Supplier's available addition User Subscription form. The Supplier shall evaluate such request for additional User Subscriptions and respond to the Customer with approval or rejection of the request. Where the Supplier approves the request, the Supplier shall activate the additional User Subscriptions within two Business Days of its approval of the Customer's request.
- 3.3 If the Supplier approves the Customer's request to purchase additional User Subscriptions, the Customer shall , within 14 days of the date of the Supplier's invoice, pay to the Supplier the relevant fees for such additional User Subscriptions as set out in paragraph 1 of Schedule 1 and, if such additional User Subscriptions are purchased by the Customer part way through the Initial Subscription Term or any Renewal Period (as applicable), such fees shall be pro-rated from the date of activation by the Supplier for the remainder of the Initial Subscription Term or then current Renewal Period (as applicable).

4. Services

- 4.1 The Supplier shall, during the Subscription Term:
- (a) provide the Services and make available the Documentation to the Customer on and subject to the terms of these Terms and Conditions.
 - (b) Subject to clauses 4.3 and 4.3, the Supplier shall use commercially reasonable endeavours to make the Services available 24 hours a day, seven days a week with the Supplier making reasonable endeavours to provide 99% Availability of the Services during each calendar month.
 - (c) Subject to mutual agreement, the Supplier will need planned / scheduled downtime for regular maintenance, upkeep, or upgrade of the System. Such planned, notified downtimes will not be considered for the calculation of Availability. Supplier will endeavour to minimise the impact of such downtimes.
- 4.2 The Supplier will, as part of the Services and in consideration of the support fees set out in Schedule 1, provide the Customer with the Supplier's standard customer support services during Normal Business Hours in accordance with the Supplier's Support Services Policy in effect at the time that the Services are provided. The Supplier may amend the Support Services Policy in its sole and absolute discretion from time to time.

The Customer may purchase enhanced support services separately at the Supplier's then current rates.

4.3 The availability of the Service to the Customer is subject to the following:

- (a) planned maintenance carried out during the maintenance window of anytime on Saturday and Sunday (Indian Standard Time);
- (b) unscheduled maintenance performed outside Normal Business Hours, provided that the Supplier has used reasonable endeavours to give the Customer at least 6 Normal Business Hours' notice in advance.
- (c) factors outside the reasonable control of the Supplier including but not limited to natural disaster, war, acts of terrorism, pandemic, government action, or a network or device failure external to the Supplier's data centres, including at the Customer site or between the Customer site and the Supplier's data centre;
- (d) incidents that result from the use of services, hardware, or software not provided by the Supplier, including, but not limited to, issues resulting from inadequate bandwidth or related to third-party applications or services;
- (e) incidents caused by the Customer use of the Services after the Supplier advised the Customer to modify its use of the Services, if the Customer did not modify its use as advised;
- (f) incidents caused by the Customer failure to:
 - (i) apply conforming updates to on-premises software furnished to the Customer as part of the Services; or
 - (ii) maintain an application support subscription for applications hosted as part of the Services
 - (iii) failure to apply updates to the hosted applications or supporting client-side applications;
- (g) incidents with respect to non-production environments including but not limited to tests and trials or preview, pre-release, beta or trial versions of the Services; or
- (h) incidents that result from the Customer unauthorized action or lack of action when required, or from its employees, agents, contractors, or vendors, or anyone gaining access to the Supplier's network by means of the Customer's passwords or equipment, or otherwise resulting from its failure to follow appropriate security practices.

4.4 The Customer will always:

- (a) have sole responsibility for the accuracy, quality, integrity, legality, reliability, and appropriateness of all Customer data.
- (b) use commercially reasonable efforts to prevent unauthorized access to or use of the Service, and notify the Supplier promptly of any such unauthorized use;

- (c) comply with the Supplier's reasonable and customary written instructions and with all applicable laws in using the Service; and
 - (d) not create internet links to or from the Service, or frame or mirror any content forming part of the Service other than on the Customer's own intranets or otherwise for its own internal business purposes.
- 4.5 To receive a Service Credit for any shortfall of Availability, the Customer must request the Service Credit by emailing the Supplier in writing within 30 days following the end of the calendar month for which the Customer is eligible to receive the Service Credit. The Supplier will calculate Availability using its systems logs and records. Any Service Credits will be applied to the subsequent Subscription Fees invoice. If no further invoices apply, any available Service Credit will be refunded to Supplier.

5. Data protection

- 5.1 The parties warrant to comply with all obligations under applicable data protection law and all other relevant (national, European and international) data protection regulations, expressly including the General Data Protection Regulation (GDPR), applicable to the performance of the agreement, at all times. If required under applicable privacy legislation, the parties will enter into a data processing agreement.
- 5.2 The parties shall:
 - (a) take appropriate security measures to protect the confidentiality of the (personal) data provided by the other party;
 - (b) upon request, inform the other party of the security measures taken in relation to the foregoing; and
 - (c) notify the other party of any personal data breach in accordance with, and within the timeframe specified in the applicable privacy legislation.
- 5.3 The Customer shall indemnify the Supplier against any and all third-party claims based on the assertion that data processed by the Supplier, the processing of data and/or the result of such processing violates applicable rights, such as the GDPR and/or rights arising therefrom.

6. Third party providers

The Customer acknowledges that the Services may enable or assist it to access the website content of, correspond with, and purchase products and services from, third parties via third-party websites and that it does so solely at its own risk. The Supplier makes no representation, warranty or commitment and shall have no liability or obligation whatsoever in relation to the content or use of, or correspondence with, any such third-party website, or any transactions completed, and any contract entered into by the Customer, with any such third party. Any contract entered into and any transaction completed via any third-party website is between the Customer and the relevant third party, and not the Supplier. The Supplier recommends that the Customer

refers to the third party's website terms and conditions and privacy policy prior to using the relevant third-party website. The Supplier does not endorse or approve any third-party website nor the content of any of the third-party website made available via the Services.

7. Supplier's obligations

- 7.1 The Supplier undertakes that the Services will be performed substantially in accordance with the Documentation and with reasonable skill and care.
- 7.2 The undertaking at clause 7.1 shall not apply to the extent of any non-conformance which is caused by use of the Services contrary to the Supplier's instructions, or modification or alteration of the Services by any party other than the Supplier or the Supplier's duly authorised contractors or agents. If the Services do not conform with the foregoing undertaking, Supplier will, at its expense, use all reasonable commercial endeavours to correct any such non-conformance promptly, or provide the Customer with an alternative means of accomplishing the desired performance. Such correction or substitution constitutes the Customer's sole and exclusive remedy for any breach of the undertaking set out in clause 7.1.
- 7.3 The Supplier:
- (a) does not warrant that:
 - (i) the Customer's use of the Services will be uninterrupted or error-free;
 - (ii) that the Services, Documentation and/or the information obtained by the Customer through the Services will meet the Customer's requirements;
 - (iii) the Software or the Services will be free from Vulnerabilities or Viruses; or
 - (iv) the Software, Documentation or Services will comply with any Heightened Cybersecurity Requirements.
 - (b) is not responsible for any delays, delivery failures, or any other loss or damage resulting from the transfer of data over communications networks and facilities, including the internet, and the Customer acknowledges that the Services and Documentation may be subject to limitations, delays and other problems inherent in the use of such communications facilities.
- 7.4 These Terms and Conditions shall not prevent the Supplier from entering into similar agreements with third parties, or from independently developing, using, selling or licensing documentation, products and/or services which are similar to those provided under these Terms and Conditions.
- 7.5 The Supplier warrants that it has and will maintain all necessary licences, consents, and permissions necessary for the performance of its obligations under these Terms and Conditions.

- 7.6 The Supplier shall follow its archiving procedures for Customer Data as set out in its Back-Up Policy available at <https://rheincs.com/CorusHR/data-retention-backup-policy.pdf> or such other website address as may be notified to the Customer from time to time, as such document may be amended by the Supplier in its sole discretion from time to time. In the event of any loss or damage to Customer Data, the Customer's sole and exclusive remedy against the Supplier shall be for the Supplier to use reasonable commercial endeavours to restore the lost or damaged Customer Data from the latest back-up of such Customer Data maintained by the Supplier in accordance with the archiving procedure described in its Back-Up Policy. The Supplier shall not be responsible for any loss, destruction, alteration or disclosure of Customer Data caused by any third party (except those third parties sub-contracted by the Supplier to perform services related to Customer Data maintenance and back-up for which it shall remain fully liable).

8. Customer's obligations

- 8.1 The Customer shall:

- (a) provide the Supplier with:
 - (i) all necessary co-operation in relation to these Terms and Conditions; and
 - (ii) all necessary access to such information as may be required by the Supplier;in order to provide the Services, including but not limited to Customer Data, security access information and configuration services;
- (b) without affecting its other obligations under these Terms and Conditions, comply with all applicable laws and regulations with respect to its activities under these Terms and Conditions;
- (c) carry out all other Customer responsibilities set out in these Terms and Conditions in a timely and efficient manner. In the event of any delays in the Customer's provision of such assistance as agreed by the parties, the Supplier may adjust any agreed timetable or delivery schedule as reasonably necessary;
- (d) ensure that the Authorised Users use the Services and the Documentation in accordance with the terms and conditions of these Terms and Conditions and shall be responsible for any Authorised User's breach of these Terms and Conditions;
- (e) obtain and shall maintain all necessary licences, consents, and permissions necessary for the Supplier, its contractors and agents to perform their obligations under these Terms and Conditions, including without limitation the Services;
- (f) ensure that its network and systems comply with the relevant specifications provided by the Supplier from time to time; and

- (g) be, to the extent permitted by law and except as otherwise expressly provided in these Terms and Conditions, solely responsible for procuring, maintaining and securing its network connections and telecommunications links from its systems to the Supplier's data centres, and all problems, conditions, delays, delivery failures and all other loss or damage arising from or relating to the Customer's network connections or telecommunications links or caused by the internet.
- 8.2 The Customer shall own all right, title and interest in and to all of the Customer Data that is not personal data and shall have sole responsibility for the legality, reliability, integrity, accuracy and quality of all such Customer Data.
- 9. Charges and payment**
- 9.1 The Customer shall pay the Subscription Fees to the Supplier for the User Subscriptions in accordance with this clause 9 and Schedule 1 and the support fees in accordance with clause 4.2 and Schedule 1.
- 9.2 The Customer shall on the Effective Date provide to the Supplier valid, up-to-date and complete credit card details or approved purchase order information acceptable to the Supplier and any other relevant valid, up-to-date and complete contact and billing details and, if the Customer provides:
 - (a) its credit card details to the Supplier, the Customer hereby authorises the Supplier to bill such credit card:
 - (i) on the Effective Date for the Subscription Fees payable in respect of the Initial Subscription Term; and
 - (ii) subject to clause 14.1, on each anniversary of the Effective Date for the Subscription Fees payable in respect of the next Renewal Period;
 - (b) its approved purchase order information to the Supplier, the Supplier shall invoice the Customer:
 - (i) on the Effective Date for the Subscription Fees payable in respect of the Initial Subscription Term; and
 - (ii) subject to clause 14.1, at least 30 days prior to each anniversary of the Effective Date for the Subscription Fees payable in respect of the next Renewal Period,and the Customer shall pay each invoice within 30 days after the date of such invoice.
- 9.3 If the Supplier has not received payment within 30 days after the due date, and without prejudice to any other rights and remedies of the Supplier:
 - (a) the Supplier may, without liability to the Customer, disable the Customer's password, account and access to all or part of the Services and the Supplier

shall be under no obligation to provide any or all of the Services while the invoice(s) concerned remain unpaid; and

- (b) interest shall accrue on a daily basis on such due amounts at an annual rate of 8% per annum, commencing on the due date and continuing until fully paid, whether before or after judgment.

9.4 All amounts and fees stated or referred to in these Terms and Conditions:

- (a) shall be payable in USD (\$)
- (b) are, subject to clause 13.3(b), non-cancellable and non-refundable;
- (c) are exclusive of value added tax, which shall be added to the Supplier's invoice(s) at the appropriate rate.
- (d) Such fee shall increase by 5% annually after the initial period of two years.

9.5 If, at any time whilst using the Services, the Customer exceeds the disk storage space by 10 GB, the Supplier shall charge the Customer, and the Customer shall pay, the Supplier's then current excess data storage fees. The Supplier's excess data storage fees current as at the Effective Date are set out in Schedule 1.

9.6 The Supplier shall be entitled to increase the Subscription Fees, the fees payable in respect of the additional User Subscriptions purchased pursuant to clause 3.3, the support fees payable pursuant to clause 4.2 and/or the excess storage fees payable pursuant to clause 9.5 at the start of each Renewal Period upon 90 days' prior notice to the Customer and Schedule 1 shall be deemed to have been amended accordingly.

10. Proprietary rights

10.1 The Customer acknowledges and agrees that the Supplier and/or its licensors own all intellectual property rights in the Services and the Documentation. Except as expressly stated herein, these Terms and Conditions does not grant the Customer any rights to, under or in, any patents, copyright, database right, trade secrets, trade names, trademarks (whether registered or unregistered), or any other rights or licences in respect of the Services or the Documentation.

10.2 The Supplier confirms that it has all the rights in relation to the Services and the Documentation that are necessary to grant all the rights it purports to grant under, and in accordance with, the terms of these Terms and Conditions.

11. Confidentiality

11.1 **Confidential Information** means all confidential information (however recorded or preserved) disclosed by a party or its Representatives (as defined below) to the other party and that party's Representatives whether before or after the date of these Terms and Conditions in connection with these Terms and Conditions, including but not limited to:

- (a) the terms of these Terms and Conditions or any agreement entered into in connection with these Terms and Conditions;
- (b) any information that would be regarded as confidential by a reasonable business person relating to:
 - (i) the business, assets, affairs, customers, clients, suppliers, plans, intentions, or market opportunities of the disclosing party (or of any member of the group of companies to which the disclosing party belongs); and
 - (ii) the operations, processes, product information, know-how, designs, trade secrets or software of the disclosing party (or of any member of the group of companies to which the disclosing party belongs); and
- (c) any information developed by the parties in the course of carrying out these Terms and Conditions and the parties agree that:
 - (i) details of the Services, and the results of any performance tests of the Services, shall constitute Supplier Confidential Information; and
 - (ii) Customer Data shall constitute Customer Confidential Information.

Representatives means, in relation to a party, its employees, officers, contractors, subcontractors, representatives and advisers.

11.2 The provisions of this clause shall not apply to any Confidential Information that:

- (a) is or becomes generally available to the public (other than as a result of its disclosure by the receiving party or its Representatives in breach of this clause);
- (b) was available to the receiving party on a non-confidential basis before disclosure by the disclosing party;
- (c) was, is or becomes available to the receiving party on a non-confidential basis from a person who, to the receiving party's knowledge, is not bound by a confidentiality agreement with the disclosing party or otherwise prohibited from disclosing the information to the receiving party; or
- (d) the parties agree in writing is not confidential or may be disclosed.

11.3 Each party shall keep the other party's Confidential Information secret and confidential and shall not:

- (a) use such Confidential Information except for the purpose of exercising or performing its rights and obligations under or in connection with these Terms and Conditions (**Permitted Purpose**); or
- (b) disclose such Confidential Information in whole or in part to any third party, except as expressly permitted by this clause 11.

- 11.4 A party may disclose the other party's Confidential Information to those of its Representatives who need to know such Confidential Information for the Permitted Purpose, provided that:
- (a) it informs such Representatives of the confidential nature of the Confidential Information before disclosure; and
 - (b) at all times, it is responsible for such Representatives' compliance with the confidentiality obligations set out in this clause.
- 11.5 A party may disclose Confidential Information to the extent such Confidential Information is required to be disclosed by law, by any governmental or other regulatory authority or by a court or other authority of competent jurisdiction provided that, to the extent it is legally permitted to do so, it gives the other party as much notice of such disclosure as possible and, where notice of disclosure is not prohibited and is given in accordance with this clause 11.5, it takes into account the reasonable requests of the other party in relation to the content of such disclosure.
- 11.6 Each party reserves all rights in its Confidential Information. No rights or obligations in respect of a party's Confidential Information other than those expressly stated in these Terms and Conditions are granted to the other party, or to be implied from these Terms and Conditions.
- 11.7 On termination or expiry of these Terms and Conditions, each party shall if requested by the other party:
- (a) destroy or return to the other party all documents and materials (and any copies) containing, reflecting, incorporating or based on the other party's Confidential Information;
 - (b) erase all the other party's Confidential Information from computer and communications systems and devices used by it, including such systems and data storage services provided by third parties (to the extent technically and legally practicable); and
 - (c) certify in writing to the other party that it has complied with the requirements of this clause, provided that a recipient party may retain documents and materials containing, reflecting, incorporating or based on the other party's Confidential Information to the extent required by law or any applicable governmental or regulatory authority. The provisions of this clause shall continue to apply to any such documents and materials retained by a recipient party, subject to clause 14 (Termination).
- 11.8 No party shall make, or permit any person to make, any public announcement concerning these Terms and Conditions without the prior written consent of the other parties (such consent not to be unreasonably withheld or delayed), except as required by law, any governmental or regulatory authority (including, without limitation, any relevant securities exchange), any court or other authority of competent jurisdiction.

- 11.9 Except as expressly stated in these Terms and Conditions, no party makes any express or implied warranty or representation concerning its Confidential Information.
- 11.10 The above provisions of this clause 11 shall continue to apply after termination or expiry of these Terms and Conditions.

12. Indemnity

- 12.1 The Customer shall defend, indemnify and hold harmless the Supplier against claims, actions, proceedings, losses, damages, expenses and costs (including without limitation court costs and reasonable legal fees) arising out of or in connection with the Customer's use of the Services and/or Documentation, provided that:
- (a) the Customer is given prompt notice of any such claim;
 - (b) the Supplier provides reasonable co-operation to the Customer in the defence and settlement of such claim, at the Customer's expense; and
 - (c) the Customer is given sole authority to defend or settle the claim.
- 12.2 The Supplier shall defend the Customer, its officers, directors and employees against any claim that the Customer's use of the Services or Documentation in accordance with these Terms and Conditions infringes any European patent effective as of the Effective Date, copyright, trade mark, database right or right of confidentiality, and shall indemnify the Customer for any amounts awarded against the Customer in judgment or settlement of such claims, provided that:
- (a) the Supplier is given prompt notice of any such claim;
 - (b) the Customer does not make any admission, or otherwise attempt to compromise or settle the claim and provides reasonable co-operation to the Supplier in the defence and settlement of such claim, at the Supplier's expense; and
 - (c) the Supplier is given sole authority to defend or settle the claim.
- 12.3 In the defence or settlement of any claim, the Supplier may procure the right for the Customer to continue using the Services, replace or modify the Services so that they become non-infringing or, if such remedies are not reasonably available, terminate these Terms and Conditions on 2 Business Days' notice to the Customer without any additional liability or obligation to pay liquidated damages or other additional costs to the Customer.
- 12.4 In no event shall the Supplier, its employees, agents and sub-contractors be liable to the Customer to the extent that the alleged infringement is based on:
- (a) a modification of the Services or Documentation by anyone other than the Supplier; or
 - (b) the Customer's use of the Services or Documentation in a manner contrary to the instructions given to the Customer by the Supplier; or

- (c) the Customer's use of the Services or Documentation after notice of the alleged or actual infringement from the Supplier or any appropriate authority.
- 12.5 The foregoing and clause 13.3(b) state the Customer's sole and exclusive rights and remedies, and the Supplier's (including the Supplier's employees', agents' and sub-contractors') entire obligations and liability, for infringement of any patent, copyright, trade mark, database right or right of confidentiality.

13. Limitation of liability

- 13.1 Except as expressly and specifically provided in these Terms and Conditions:
 - (a) the Customer assumes sole responsibility for results obtained from the use of the Services and the Documentation by the Customer, and for conclusions drawn from such use. The Supplier shall have no liability for any damage caused by errors or omissions in any information, instructions or scripts provided to the Supplier by the Customer in connection with the Services, or any actions taken by the Supplier at the Customer's direction;
 - (b) all warranties, representations, conditions and all other terms of any kind whatsoever implied by statute or common law are, to the fullest extent permitted by applicable law, excluded from these Terms and Conditions; and
 - (c) the Services and the Documentation are provided to the Customer on an "as is" basis.
- 13.2 Nothing in these Terms and Conditions excludes the liability of the Supplier:
 - (a) for death or personal injury caused by the Supplier's negligence; or
 - (b) for fraud or fraudulent misrepresentation.
- 13.3 Subject to clause 13.1 and clause 13.2:
 - (a) the Supplier shall not be liable whether in tort (including for negligence or breach of statutory duty), contract, misrepresentation, restitution or otherwise for any loss of profits, loss of business, depletion of goodwill and/or similar losses or loss or corruption of data or information, or pure economic loss, or for any special, indirect or consequential loss, costs, damages, charges or expenses however arising under these Terms and Conditions; and
 - (b) the Supplier's total aggregate liability in contract (including in respect of the indemnity at clause 12.2), tort (including negligence or breach of statutory duty), misrepresentation, restitution or otherwise, arising in connection with the performance or contemplated performance of these Terms and Conditions shall be limited to the total Subscription Fees paid for the User Subscriptions during the 12 months immediately preceding the date on which the claim arose.
- 13.4 Nothing in these Terms and Conditions excludes the liability of the Customer for any breach, infringement or misappropriation of the Supplier's Intellectual Property Rights.

14. Term and termination

14.1 These Terms and Conditions shall, unless otherwise terminated as provided in this clause 14, commence on the Effective Date and shall continue for the Initial Subscription Term and, thereafter, these Terms and Conditions shall be automatically renewed for automatic 1-year renewal unless terminated with 90 days' prior written notice (each a Renewal Period), unless:

- (a) either party notifies the other party of termination, in writing, at least 90 days before the end of the Initial Subscription Term or any Renewal Period, in which case these Terms and Conditions shall terminate upon the expiry of the applicable Initial Subscription Term or Renewal Period; or
- (b) otherwise terminated in accordance with the provisions of these Terms and Conditions;

and the Initial Subscription Term together with any subsequent Renewal Periods shall constitute the **Subscription Term**.

14.2 Without affecting any other right or remedy available to it, either party may terminate these Terms and Conditions with immediate effect by giving written notice to the other party if:

- (a) the other party fails to pay any amount due under these Terms and Conditions on the due date for payment and remains in default not less than 30 days after being notified in writing to make such payment;
- (b) the other party commits a material breach of any other term of these Terms and Conditions and (if such breach is remediable) fails to remedy that breach within a period of 30 days after being notified in writing to do so;
- (c) the other party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with its creditors other than for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;
- (d) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other party other than for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;
- (e) an application is made to court, or an order is made, for the appointment of an administrator, or if a notice of intention to appoint an administrator is given or if an administrator is appointed, over the other party (being a company, partnership or limited liability partnership);
- (f) the holder of a qualifying floating charge over the assets of that other party (being a company or limited liability partnership) has become entitled to appoint or has appointed an administrative receiver;
- (g) a person becomes entitled to appoint a receiver over the assets of the other party or a receiver is appointed over the assets of the other party;

- (h) a creditor or encumbrancer of the other party attaches or takes possession of, or a distress, execution, sequestration or other such process is levied or enforced on or sued against, the whole or any part of the other party's assets and such attachment or process is not discharged within 14 days;
- (i) any event occurs, or proceeding is taken, with respect to the other party in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned in 14.2(c) to clause 14.2(h) (inclusive);
- (j) the other party suspends or ceases, or threatens to suspend or cease, carrying on all or a substantial part of its business;
- (k) the other party's financial position deteriorates so far as to reasonably justify the opinion that its ability to give effect to the terms of these Terms and Conditions is in jeopardy; or
- (l) there is a change of control of the other party.

14.3 On termination of these Terms and Conditions for any reason:

- (a) all licences granted under these Terms and Conditions shall immediately terminate and the Customer shall immediately cease all use of the Services and/or the Documentation;
- (b) each party shall return and make no further use of any equipment, property, Documentation and other items (and all copies of them) belonging to the other party;
- (c) the Supplier may destroy or otherwise dispose of any of the Customer Data in its possession unless the Supplier receives, no later than ten days after the effective date of the termination of these Terms and Conditions, a written request for the delivery to the Customer of the then most recent back-up of the Customer Data. The Supplier shall use reasonable commercial endeavours to deliver the back-up to the Customer within 30 days of its receipt of such a written request, provided that the Customer has, at that time, paid all fees and charges outstanding at and resulting from termination (whether or not due at the date of termination). The Customer shall pay all reasonable expenses incurred by the Supplier in returning or disposing of Customer Data; and
- (d) any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the agreement which existed at or before the date of termination shall not be affected or prejudiced.

15. Force majeure

Neither party shall be in breach of these Terms and Conditions nor liable for delay in performing, or failure to perform, any of its obligations under these Terms and Conditions if such delay or failure result from events, circumstances or causes beyond its reasonable control. The time for performance of such obligations shall be extended

accordingly. If the period of delay or non-performance continues for twelve weeks, the party not affected may terminate these Terms and Conditions by giving 30 days' written notice to the affected party.

16. Conflict

If there is an inconsistency between any of the provisions in the main body of these Terms and Conditions and the Schedules, the provisions in the main body of these Terms and Conditions shall prevail.

17. Variation

The Supplier may vary these terms and conditions from time to time on giving the Customer at least 14 days' notice in writing provided that any variation required by applicable law will be effective immediately.

18. Waiver

18.1 A waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent right or remedy.

18.2 A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not waive that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy.

19. Rights and remedies

Except as expressly provided in these Terms and Conditions, the rights and remedies provided under these Terms and Conditions are in addition to, and not exclusive of, any rights or remedies provided by law.

20. Severance

20.1 If any provision or part-provision of these Terms and Conditions is or becomes invalid, illegal or unenforceable, it shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of these Terms and Conditions.

20.2 If any provision or part-provision of these Terms and Conditions is deemed deleted under clause 20.1 the parties shall negotiate in good faith to agree a replacement provision that, to the greatest extent possible, achieves the intended commercial result of the original provision.

21. Entire agreement

21.1 These Terms and Conditions in conjunction with the Order Form constitutes the entire agreement between the parties and supersedes and extinguishes all previous and contemporaneous agreements, promises, assurances and understandings between them, whether written or oral, relating to its subject matter.

21.2 Each party acknowledges that in entering into the Order Form and these Terms and Conditions it does not rely on, and shall have no remedies in respect of, any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in these Terms and Conditions.

21.3 Each party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in these Terms and Conditions.

22. Assignment

22.1 The Customer shall not, without the prior written consent of the Supplier, assign, novate, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under these Terms and Conditions.

22.2 The Supplier may at any time assign, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under these Terms and Conditions.

23. No partnership or agency

Nothing in these Terms and Conditions is intended to or shall operate to create a partnership between the parties, or authorise either party to act as agent for the other, and neither party shall have the authority to act in the name or on behalf of or otherwise to bind the other in any way (including, but not limited to, the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power).

24. Third party rights

These Terms and Conditions does not confer any rights on any person or party (other than the parties to these Terms and Conditions and, where applicable, their successors and permitted assigns) pursuant to the Contracts (Rights of Third Parties) Act 1999.

25. Notices

25.1 Any notice given to a party under or in connection with these Terms and Conditions shall be in writing and shall be:

- (a) delivered by hand or by pre-paid first-class post or other next working day delivery service at its registered office (if a company) or its principal place of business (in any other case); or
- (b) sent by email to the addresses set out in the Order Form (or an address substituted in writing by the party to be served).

25.2 Any notice shall be deemed to have been received:

- (a) if delivered by hand, at the time the notice is left at the proper address;

- (b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the second Business Day after posting; or
 - (c) if sent by email, at the time of transmission, or, if this time falls outside Business Hours in the place of receipt, when Business Hours resume.
- 25.3 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

26. Governing law

These Terms and Conditions and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and interpreted in accordance with the Laws of the United Arab Emirates.

27. Jurisdiction

- 27.1 These Terms and Conditions and all matters arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) and any dispute resolutions referred to below shall be governed by and construed in accordance with Laws of the United Arab Emirates notwithstanding the conflict of law provisions and other mandatory legal provisions save that:
 - (a) the Supplier shall have the right to sue to recover its fees in any jurisdiction in which the Reseller is operating or has assets; and
 - (b) the Supplier shall have the right to sue for breach of its Intellectual Property Rights and other proprietary information (whether in connection with these Terms and Conditions or otherwise) in any country where it believes that infringement or a breach of these Terms and Conditions relating to its Intellectual Property Rights and/or other proprietary information might be taking place.
- 27.2 Each party recognises that the other party's business relies upon the protection of its Intellectual Property Rights and that in the event of a breach or threatened breach of Intellectual Property Rights, the other party will be caused irreparable damage and such other party may therefore be entitled to injunctive or other equitable relief in order to prevent a breach or threatened breach of its Intellectual Property Rights.
- 27.3 With respect to all other disputes which are not Intellectual Property Rights related pursuant to clauses 27.1(b) and 27.2 above the following procedures in clauses 27.3 to 27.5 shall apply. Where there is a dispute the aggrieved party shall notify the other party in writing of the nature of the dispute with as much detail as possible about the deficient performance of the other party. A representative from senior management of each party (representatives) shall meet in person or communicate by telephone within 5 Business Days of the date of the written notification in order to reach an agreement about the nature of the deficiency and the corrective action to be taken by each party. The representatives shall produce a report about the nature of the dispute in detail to

their respective boards and if no agreement is reached on corrective action, then the chief executives of each party shall meet in person or communicate by telephone to facilitate an agreement within 5 Business Days of a written notice by one to the other. If the dispute cannot be resolved at board level within a further 5 Business Days, or if the agreed upon completion dates in any written plan of corrective action are exceeded, either party may seek its legal remedies as provided below.

- 27.4 Subject to clause 27.3, the parties shall first refer the dispute to proceedings under the ICC Mediation Rules. If the dispute has not been settled pursuant to the said Rules within 30 Business Days following the filing of a Request for Mediation (as defined in the ICC Mediation Rules) or within such other period as the parties may agree in writing, such dispute shall thereafter be finally settled under the Rules of Arbitration of the International Chamber of Commerce by one or more arbitrators appointed in accordance with the said Rules of Arbitration.
- 27.5 Subject to clause 27.3, if the dispute shall be of a technical nature relating to the functions or capabilities of the Products or any similar or related matter, then the dispute shall be referred for final settlement to an expert nominated jointly by the parties or failing such nomination within 10 Business Days after either party's request to the other for such nomination an expert nominated at the request of either party by the President for the time being of the British Computer Society. Such expert shall be deemed to act as an expert and not as an arbitrator. The expert's decision shall (in the absence of clerical or manifest error) be final and binding on the parties in equal shares unless he determines that the conduct of either party is such that such party should bear all of such fees. In any other case the dispute shall be determined pursuant to clause 27.4 after compliance with clause 27.3.

Schedule 1: Subscription Fees

1. Additional User Subscription Fees

Additional User Subscriptions may be purchased by the Customer in accordance with clause 3 at rates the Supplier shall supply upon the request of the Customer

2. Excess Storage Fees

If the Customer data storage exceeds 10GB, the excess storage fee will be charged based on the rates of the Cloud Service Provider.

The Supplier's support fees cover the following and are included in the Subscription Fees:

- 2.1 Implementation
- 2.2 Training using Corus HR or customised training or onsite training services
- 2.3 Data migration services
- 2.4 Support
- 2.5 Any additional support that is not determined as Out-of-Scope Services in the reasonable opinion of the Supplier.
- 2.6 Fees for Out-of-Scope Services will be quoted by the Supplier for Customer agreement prior to the commencement of the Out-of-Scope Services. The Supplier will endeavour to apply the most appropriate fees model for Out-of-Scope Services which may include a fee rate per hour per specialist supplied by the Supplier to fix the problem in urgent cases.

Further details of these services are set out in Schedule 2.

Schedule 2: Support Services

1. Interpretation

The following definitions and rules of interpretation apply in this schedule.

1.1 Definitions:

Commercially Reasonable Efforts: the same degree of priority and diligence with which the Supplier meets the support needs of its other similar customers.

Contact List: a current list of Supplier contacts and telephone numbers to enable the Customer to escalate its Support Requests, including:

- (a) the first person to contact; and
- (b) the persons in successively more qualified or experienced positions to provide the support sought.

Customer Cause: any of the following causes:

- (a) any improper use, misuse or unauthorised alteration of the Software by the Customer;
- (b) any use of the Software by the Customer in a manner inconsistent with the then-current Documents;
- (c) the use by the Customer of any hardware or software not provided by the Supplier or approved by the Supplier in the Specification for use by the Customer in connection with the Software; or
- (d) the use of a non-current version or release of the Software.

Customer Site: the premises of the Customer.

Customer System: the information technology system of the Customer through which Corus HR is used by the Customer.

Fault: any Operational Fault or Vulnerability.

Good Industry Practice: the exercise of that degree of skill, care, prudence, efficiency, foresight and timeliness as would be expected from a company within the relevant industry or business sector.

Help Desk Support: any support provided by help desk technicians sufficiently qualified and experienced to identify and resolve most support issues relating to the Software.

Known Vulnerabilities: any Vulnerability that has either:

- (a) been assigned a Common Vulnerabilities and Exposures (CVE) number;
- (b) been disclosed on the National Vulnerability Database available at the website operated by the US National Institute of Standards and Technology (NIST) from time to time; or

- (c) been disclosed on the internet, or any open public database, such that it would be revealed by reasonable searches conducted in accordance with Good Industry Practice.

Latent Vulnerabilities: any instances of typical classes of Vulnerability. For example, buffer overflows, cross-site scripting (XSS) and Structure Query Language (SQL) injection.

Main Agreement: the agreement to which this schedule relates.

Mitigate: the taking of such reasonable steps that would be taken by a prudent supplier in accordance with Good Industry Practice to mitigate against the Vulnerability in question, which may include patching or coding changes, and the terms **Mitigated** and **Mitigation** shall be construed accordingly.

Operational Fault: failure of the Software to operate in all material respects in accordance with the Specification and Documents, including any operational failure or error referred to in the Service Level Table.

Out-of-scope Services: either of the following services:

- (a) any services provided by the Supplier in connection with any apparent problem regarding the Software reasonably determined by the Supplier not to have been caused by a Fault, but rather by a Customer Cause or a cause outside the Supplier's control (including any investigational work resulting in such a determination); or
- (b) any Premium Level Support provided in the circumstances specified in paragraph 2.3.

Premium-level Support: any higher-level support provided by an individual on the Contact List.

Service Levels: the service level responses and response times referred to in the Service Level Table.

Service Level Table: the table set out in paragraph 5.1.

Solution: either of the following outcomes:

- (a) correction of an Operational Fault or ;
- (b) a workaround in relation to an Operational Fault (including a reversal of any changes to the Software if deemed appropriate by the Supplier) that is reasonably acceptable to the Customer; [or
- (c) Mitigation of a Vulnerability that is reasonably acceptable to the Customer.

Support Fees: the fees for the Support Services and the services set out in paragraph 4 of Schedule 1.

Support Hours: 9am to 6pm Gulf Standard Time, Monday to Friday excluding public holidays in UAE.

Support Period: the Term and, if requested by the Customer, any period during which the Customer transfers the Services to an alternate service provider.

Support Request: request made by the Customer in accordance with this schedule for support in relation to the Software, including correction of an Operational Fault.

Support Services: maintenance of the then-current version or release of the Software, including Help Desk Support, but excluding any Out-of-scope Services.

- 1.2 All initial capitalised terms in this schedule shall have the meaning given to them in the Main Agreement, unless otherwise defined herein.

2. Support Services

- 2.1 During the Support Period the Supplier shall perform the Support Services during the Support Hours in accordance with the Service Levels.

- 2.2 As part of the Support Services, the Supplier shall:

- (a) provide Help Desk Support by means of the following e-mail address:
support@corushr.com
- (b) where Help Desk Support is not provided within the relevant Service Level response time and the Customer escalates its Support Request to an individual of appropriate qualification or experience on the Contact List, provide Premium-Level Support;
- (c) use Commercially Reasonable Efforts to:
 - (i) correct all Operational Faults notified under paragraph 4.3(a); and
 - (ii) Mitigate against all Vulnerabilities notified under paragraph 4.3(a) below or detected under 2.2(e) in the Terms and Conditions.
- (d) provide technical support for the Software in accordance with the Service Levels.

- 2.3 Any Premium-Level Support requested by the Customer to be provided by an individual whose qualification or experience is greater than that reasonably necessary to resolve the relevant Support Request shall be deemed an Out-of-scope Service, provided that an appropriately qualified or experienced individual was available at the time when the Higher-level Support was sought.

- 2.4 The Supplier may reasonably determine that any services are Out-of-scope Services. If the Supplier makes any such determination, it shall promptly notify the Customer of that determination.

- 2.5 The Customer acknowledges that the Supplier is not obliged to provide Out-of-scope Services.

3. Fees

- 3.1 The provision of Support Services on a remote, off-site basis (such as over the telephone or by e-mail) within the Support Period shall be included in the Support Fees.

- 3.2 The provision of Support Services outside the Support Period or at the Customer Site or the provision of Out-of-scope Services shall be charged for at the applicable time and materials rates set out in Schedule 1.

4. Submitting Support Requests and access

- 4.1 The Customer may request Support Services by way of a Support Request.
- 4.2 Each Support Request shall include a description of the Operational Fault or Vulnerability and, where relevant, the start time of the incident.
- 4.3 The Customer shall provide the Supplier with:
- (a) prompt notice of any Faults which it becomes aware of; and
 - (b) such output and other data, documents, information, assistance and (subject to compliance with all Customer's security and encryption requirements notified to the Supplier in writing) remote access to the Customer System, as are reasonably necessary to assist the Supplier to reproduce operating conditions similar to those present when the Customer detected the relevant Operational Fault and to respond to the relevant Support Request.
- 4.4 Save for where the Supplier reasonably determines that it requires access to the Customer Site to provide the relevant Support Service, all Support Services shall be provided on an off-site basis (such as over the telephone or by e-mail) from the Supplier's office.
- 4.5 The Customer acknowledges that, to properly assess and resolve Support Requests, it may be necessary to permit the Supplier direct access at the Customer Site to the Customer System and the Customer's files, equipment and personnel.
- 4.6 The Customer shall provide such access promptly, provided that the Supplier complies with all the Customer's reasonable security requirements and other policies and procedures relating to contractors entering and working on the Customer Site notified to the Supplier in writing reasonably in advance.

5. Service Levels

- 5.1 The Supplier shall:
- (a) prioritise:
 - (i) all Support Requests based on its reasonable assessment of the severity level of the Fault reported;
 - (ii) Mitigation of each Vulnerability based on its reasonable assessment of the risk posed by such Vulnerability; and
 - (b) respond to all Support Requests, and address all Vulnerabilities in accordance with the responses and response times specified in the table set out below:

- 5.2 The Supplier undertakes to make all reasonable efforts to support the Customer with the service levels and resolution targets described below. Where breaches of the targets occur, the Supplier undertakes to review such breaches and report to the Customer periodically at intervals no greater than 30 days with causes for such breach and actions for such remediation where remediation measures are within reasonable limits of the Supplier.

Description of interaction	Response Target
Acknowledgement & first Interaction	2 Business Hours
Establish contact, preliminary investigation & priority agreement	4 Business Hours

Support Follow Up Action	Priority			
	Critical	High	Medium	Low
Conclude investigation to determine next course	2 Business Hours	4 Business Hours	8 Business Hours	16 Business Hours
Where diagnosed as change, advise appropriate next step	4 Business Hours	8 Business Hours	16 Business Hours	24 Business Hours
Review of change by product experts	48 Business Hours	72 Business Hours	Weekly	Weekly
Assignment of change for Development	48 Business Hours	72 Business Hours	96 Business Hours	120 Business Hours

- 5.3 The parties may, on a case-by-case basis, agree in writing to a reasonable extension of the Service Level response times.
- 5.4 The Supplier shall give the Customer regular updates of the nature and status of its efforts to correct (or, where, relevant, Mitigate) any Fault and monthly reports as to the achievement of Service Levels.

6. Other remedies

- 6.1 If a Solution is not provided within the relevant Service Level response time, the Customer may escalate the Support Request to the parties' respective relationship managers identified in the Order Form and then to their respective senior management identified in the Order Form: